

Smt. Balbinder Kaur vs State Of Uttarakhand on 12 February, 2013

Author: Prafulla C. Pant

Bench: Prafulla C. Pant

1

IN THE HIGH COURT OF UTTARAKHAND AT
NAINITAL

Criminal Writ Petition No. 130 of 2013
with
Urgency Application No. 767 of 2013
Stay Application No. 764 of 2013

1. Smt. Balbinder Kaur
W/o Shri Jagdev Singh
2. Jagdev Singh
S/o Late Shri Sher Singh
Both are R/o Near Transport Nagar (Devalchaur)
Rampur Road, Manpur West, P.S Haldwani
District Nainital

..... Petitioners

Versus

1. State of Uttarakhand, through
the Secretary of Home Affairs
Uttarakhand Government Dehradun
2. Smt. Avneet Kaur
W/o Amarjeet Singh
D/o Shri Jarnail Singh
R/o Ward No.2, Sarkadi Road
Kelakheda, P.S. Bazpur
District Udham Singh Nagar

.....Respondents.

Shri R.S. Sammal, Advocate, present for the petitioners.
Shri Hari Om Bhakuni, Brief Holder, present for the State.

Hon'ble Prafulla C. Pant, J.

Urgency Application No. 767 of 2013 is allowed.

(2) Heard.

(3) By means of this writ petition moved under Article 226 of Constitution of India, the petitioners have sought quashing of the First Information Report registered as F.I.R No. 25 of 2013, relating to offences punishable under section 498A, 323 and 504 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, at Police Station Bazpur, District Udham Singh Nagar.

(4) Learned counsel for the petitioners submitted that petitioners are mother in law and father in law of the respondent no. 2 Avneer Kaur. It is further submitted that the petitioners live separately from the respondent no.3 and her husband. It is contended that impugned First Information Report is counter blast to the petition filed by husband to the respondent no. 3 against her under section 9 of Hindu Marriage Act, 1955. It is argued that it is abuse of process of law on the part of the respondent no.2 to get lodged First Information Report by resorting to section 156 (3) of Cr.P.C.

(5) Admit the petition.

(6) Learned counsel for the State prays for and is allowed six weeks' time to file the counter affidavit.

(7) Issue notice to respondent no.2 Avneet Kaur, who may also file her counter affidavit within a period of six weeks.

(8) Having considered submissions of learned counsel for the petitioners, and learned counsel for the State, as an interim measure, it is directed that the petitioners Balbinder Kaur and Jagdev Singh shall not be arrested in connection with F.I.R No. 25 of 2013, relating to offences punishable under section 498A, 323 and 504 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, registered at Police Station Bazpur, District Udham Singh Nagar, during investigation, provided they cooperate with the investigating agency. (Stay Application No. 764 of 2013 stands disposed of).

(9) List after six weeks.

(Prafulla C. Pant, J.) (Vacation Judge) Dt.12.02.2013 NP